

ASCII MASTER FLOW – PANEL 1/12: Constitutional change: flexible routes, entrenched identity

CONSTITUTIONAL CHANGE

- +-- SIMPLE MAJORITY OUTSIDE ARTICLE 368
 - | +-- ordinary legislative power; legally not an Article 368 amendment
 - |
- +-- ARTICLE 368 SPECIAL MAJORITY
 - | +-- majority of total membership of each House
 - | +-- at least two-thirds of members present and voting
 - |
- +-- SPECIAL MAJORITY + RATIFICATION BY AT LEAST HALF OF STATES
 - | +-- only for the exact federal proviso subjects

POWER DISTINCTION

ordinary legislative power -> changes law within constitutional competence

constituent power -> changes constitutional text by addition, variation or repeal

IDENTITY LIMIT

Parliament may amend every provision, but cannot destroy the Constitution's basic structure.

MUST REMEMBER: Article 368 constituent power, the dual special majority, the exact federal proviso list, mandatory assent, no joint sitting and simple-majority changes outside Article 368 must precede the basic-structure doctrine.

ASCII MASTER FLOW – PANEL 2/12: Article 368 procedure: separate Houses, no shortcuts

AMENDMENT BILL

- +-- may originate in either House of Parliament
- +-- may be introduced by a minister or private member
- +-- no prior Presidential recommendation is required

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EACH HOUSE PASSES SEPARATELY

- +-- majority of total membership
- +-- two-thirds of members present and voting
- +-- abstentions reduce present-and-voting denominator, not total membership

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NO JOINT SITTING -> failure in either House ends the Bill

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STATE RATIFICATION, IF PROVISIO APPLIES

- +-- resolutions by at least half of State legislatures
- +-- no time limit in Article 368; States cannot amend the Bill

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PRESIDENT SHALL ASSENT -> Constitution stands amended

2026 defeated Bill: total-membership limb passed; two-thirds limb failed.

ASCII MASTER FLOW – PANEL 3/12: Federal ratification: the exact Article 368 proviso map

RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO

- +-- election of the President: Articles 54 and 55
- +-- Union and State executive power: Articles 73 and 162
- +-- Supreme Court and High Courts: Chapter IV of Part V; Chapter V of Part VI
- +-- distribution of legislative powers: Chapter I of Part XI
- +-- any of the Lists in the Seventh Schedule
- +-- representation of States in Parliament
- +-- Article 368 itself

NOT THE RULE

- +-- every amendment with federal consequences
- +-- every change concerning a Governor
- +-- consent of every State

STATE ROLE

ratify or refuse the passed text -> no initiation, amendment or joint conference power.

ASCII MASTER FLOW – PANEL 4/12: From Shankari Prasad (1951) to Minerva Mills (1980): the core doctrine chain

SHANKARI PRASAD (1951) -> amendment is not Article 13 "law"; FR may be amended

Sajjan Singh (1964) -> amendability reaffirmed; reported in 1965 SCR

I.C. GOLAKNATH (1967) -> Parliament cannot amend Fundamental Rights

1971 24TH AMENDMENT -> constituent power and mandatory assent affirmed

1971 25TH AMENDMENT -> Article 31C and property-related changes

KESAVANANDA BHARATI (1973) -> every provision amendable; basic structure cannot be damaged

INDIRA NEHRU GANDHI V. RAJ NARAIN (1975) -> free and fair elections / judicial review protect democracy

1976 42ND AMENDMENT -> attempted unlimited amending power

MINERVA MILLS (1980) -> limited amending power and FR-DPSP harmony protected

Waman Rao (1980) -> cut-off fixed; reported in 1981 SCR

I.R. COELHO (2007) -> post-cut-off insertions face basic-structure impact review

FORMULA: amend the Constitution -> do not destroy its constitutional identity.

BASIC STRUCTURE IS A JUDICIAL DOCTRINE, NOT A CLOSED CONSTITUTIONAL LIST

- +-- supremacy of the Constitution
- +-- republican and democratic government
- +-- secularism
- +-- federalism
- +-- separation of powers
- +-- rule of law
- +-- judicial review
- +-- independence of the judiciary
- +-- free and fair elections
- +-- dignity, liberty and equality within the rights architecture
- +-- harmony and balance between Fundamental Rights and DPSP
- +-- limited amending power

METHOD

identify the amendment -> identify the protected feature -> prove damage, not policy dislike

TRAP: Kesavananda Bharati (1973) did not supply one unanimous, exhaustive catalogue.

ASCII MASTER FLOW – PANEL 6/12: Ninth Schedule: insertion is not immunity after the 1973 cut-off

FIRST AMENDMENT, 1951

+-- Article 31B + Ninth Schedule protect listed laws from specified rights challenge

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Waman Rao (1980)

+-- 24 April 1973 becomes the controlling cut-off

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I.R. COELHO (2007)

+-- post-cut-off insertions are reviewable

+-- court tests impact on Part III rights forming part of basic structure

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OUTCOME

reviewable != automatically invalid

listed != permanently immune

pre-cut-off != beyond every constitutional question

ANSWER TEST

1 identify insertion date

2 identify affected right / basic feature

3 examine actual constitutional damage

4 state the remedy narrowly.

CLOSE DISTINCTION: Case propositions must remain chronological and distinct: Shankari Prasad (1951), Sajjan Singh (1964), Golak Nath, the 24th Amendment, Kesavananda Bharati (1973), Indira Nehru Gandhi v. Raj Narain (1975), Minerva Mills (1980), Waman Rao (1980), Bommai, Coelho, NJAC and Anjum Kadari (2024).

CONSTITUTIONAL AMENDMENT

- +-- directly tested against basic structure under Article 368 doctrine

ORDINARY STATUTE

- +-- cannot be invalidated only because it offends an undefined basic feature
- +-- invalidity must be traced to:
 - +-- legislative incompetence
 - +-- violation of Part III
 - +-- another concrete constitutional provision

ANJUM KADARI (2024) INSC 831

- +-- supplies the current technical boundary
- +-- basic features may guide interpretation and cumulative constitutional reading
- +-- they do not become a free-standing super-Article against ordinary legislation

EXAM CORRECTION

write "violates Article X embodying the feature", not merely "violates basic structure".

ASCII MASTER FLOW – PANEL 8/12: Current evidence: defeated proposal versus commenced framework

131ST AMENDMENT BILL, 2026

- +-- introduced 16 April; negatived 17 April
- +-- 298 ayes / 230 noes / 528 present and voting
- +-- proposed 850 ceiling never became law
- +-- proves both Article 368 majority limbs must pass

106TH AMENDMENT

- +-- S.O. 1922(E), 16 April 2026 commenced the framework
- +-- Article 334A still requires publication of relevant first-post-commencement census figures
- +-- delimitation for that purpose must follow
- +-- commenced != operational reservation

STATUS RULE

date + source + legal stage -> no proposal presented as law.

ASCII MASTER FLOW – PANEL 9/12: Doctrine evaluation: guardian of identity or judicial supremacy?

CRITICISM

- +-- doctrine is judicially inferred and non-exhaustive
- +-- unelected judges review elected super-majorities
- +-- open-ended features can create uncertainty

DEFENCE

- +-- Article 368 is a Constitution-created, limited power
- +-- democracy includes future elections, rights, federal voice and independent review
- +-- Minerva Mills (1980): limited power cannot make itself unlimited

DISCIPLINED REVIEW

textual foundation -> settled precedent -> actual damage -> narrow remedy

VERDICT

reasoned, bounded review is legitimate; feature language must not become a policy veto.

ASCII MASTER FLOW – PANEL 10/12: Prelims traps and verified PYQ control

PRELIMS CONTROL

Article 368 -> addition, variation or repeal
both Houses use both special-majority limbs
ratification -> exact proviso + at least half
basic structure -> non-exhaustive
Ninth Schedule -> reviewable after cut-off

no joint sitting
President shall assent
Article 241 and 279A are separately named
ordinary-statute boundary applies
not automatically invalid

VERIFIED PYQS

2 Mains: 2019 Q12 and 2025 Q12

8 Prelims: 2018 Q5; 2019 Q45/Q47; 2020 Q13; 2022 Q13; 2023 Q34; 2024 Q66; 2025 Q58

Official local keys: 2024 Q66 = D; 2025 Q58 = A. Earlier keys are explicitly inferred.

CURRENT TRAPS

131st Bill = defeated proposal

106th Amendment = commenced, not operational.

ASCII MASTER FLOW – PANEL 11/12: Marks-scaled Mains execution: 10, 15 and 20 marks

10 MARKS / 150 WORDS

thesis -> 3-4 dimensions -> 2-3 evidence units -> qualification -> verdict

15 MARKS / 250 WORDS

procedure and substantive limit -> 4-6 Articles/cases -> application -> evaluation -> verdict

20 MARKS / 250-300 WORDS

design -> chronology -> applications -> current evidence

criticism/defence -> nuanced verdict

EXECUTION RULE

claim -> named evidence -> analysis -> qualification

compress by demand; do not dump every case or basic feature

FINAL LINE

Article 368 permits transformation within constitutional identity.

Parliament may amend, but cannot destroy or replace the Constitution.

ASCII MASTER FLOW – PANEL 12/12: Current amendment-status control: proposal, commencement and operation

ANJUM KADARI (2024) INSC 831 -> no free-standing basic-structure attack on ordinary law

131ST AMENDMENT BILL 2026 -> defeated proposal; not law or precedent

S.O. 1922(E), 16 APR 2026 -> 106TH AMENDMENT commenced

ARTICLE 334A -> operation awaits specified census publication plus delimitation

RULE: enactment, commencement and operational effect are distinct legal events.

LEGAL/SOURCE LIMIT: Basic structure limits constitutional amendments, not ordinary statutes as a free-standing test. The 131st Bill was defeated; the 106th Amendment has commenced, while Article 334A still separates commencement from operation.